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PLAINTIFFS' MOTION FOR LEAVE TO AMEND THE SECOND AMENDED COMPLAINT TO STATE ADDITIONAL CLAIMS FOR PUNITIVE DAMAGES

Motion filed on August 21, 2026.

MOVING PARTY: Kimberly Gallegos, Alex Gallegos, and Angel Sanchez (collectively, Plaintiffs)

RESPONDING PARTY: Consolidated Disposal Service, LLC (CDS) and Logan Jose Lizares (Lizares)

NOTICE: OK.

RELIEF REQUESTED: Leave to file a Third Amended Complaint in the Gallegos action and a Second Amended Complaint in the consolidated Sanchez action adding allegations and a prayer for punitive damages against CDS.

RULING: Denied.

BACKGROUND

These consolidated actions arise from a November 20, 2019 collision involving a commercial truck owned or operated by Consolidated Disposal Service, LLC ("CDS") and driven by Logan Jose Lizares ("Lizares") (collectively, "Defendants"). Kimberly Gallegos and Alex Gallegos ("the Gallegos plaintiffs") and Angel Sanchez ("Sanchez") (collectively, "Plaintiffs") allege that the Gallegos plaintiffs' decedent, Sebastien Gallegos, was killed and that Sanchez was injured in the collision. The Gallegos action was filed on November 8, 2021, and was later consolidated with the Sanchez action.

On August 22, 2025, Plaintiffs filed the operative Second Amended Complaint in Kimberly Gallegos et al. v. Consolidated Disposal Service, LLC et al., Case No. 21STCV41026 (Gallegos), and the operative First Amended Complaint in the consolidated action Angel Sanchez v. Consolidated Disposal Service et al., Case No. 21STCV42588 (Sanchez).

On August 21, 2026, Plaintiffs filed the present motion, supported by the declaration of Alan Van Gelder and Exhibits 1 through 6. Exhibits 1 and 2 are the proposed Third Amended Complaint in Gallegos and proposed Second Amended Complaint in Sanchez. (Van Gelder Decl. ¶¶ 1-2.)

On August 24, 2026, at Plaintiffs' request, the Court advanced the hearing from December 23, 2026 and continued it to August 28, 2026. (8/24/26 Minute Order at p. 7.) Trial is set for September 8, 2026. (Motion at p. 1.)

On August 26, 2026, Consolidated Disposal Service, LLC (CDS) and Logan Jose Lizares (Lizares) filed an opposition.

LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (a)(1) provides, in relevant part: "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc., § 473, subd. (a)(1).) This discretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit." (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1047.)

Under Rule 3.1324, subdivision (a) of the California Rules of Court, a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324, subd. (a).)

Under Rule 3.1324, subdivision (b) of the California Rules of Court, a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324, subd. (b).)

The liberal policy favoring amendment does not require leave where the moving party has unreasonably delayed and the amendment would prejudice the opposing party. (Hughes v. Farmers Ins. Exchange (2024) 107 Cal.App.5th 73, 87.) Prejudice may be shown where an amendment on the eve of trial raises issues for which the opposing party has had no opportunity to prepare. (Magpali v. Farmers Group, Inc. (1996) 48 Cal.App.4th 471, 487-488.) In Magpali, denial was proper where avoiding that prejudice would require continuing trial to permit further discovery. (Id. at p. 488.) Similarly, denial was affirmed where amendment was sought after the trial readiness conference, would require additional discovery or pretrial motion practice, and the delay was unexplained. (P & D Consultants, Inc. v. City of Carlsbad (2010) 190 Cal.App.4th 1332, 1345.) Leave may also be denied where the proposed amendment would be futile. (Nelson v. Tucker Ellis, LLP (2020) 48 Cal.App.5th 827, 848-849.)

DISCUSSION

Plaintiffs seek leave to amend both operative complaints to add punitive damages against Consolidated Disposal Service, LLC (CDS).

In Gallegos, Case No. 21STCV41026, Plaintiffs seek leave to file a Third Amended Complaint adding paragraph 31(A) through (K) to the negligence cause of action. The proposed allegations assert, among other things, that CDS knew the truck was required to have a substantially constructed rear underride guard, that the guard installed on the truck was allegedly effective only at low speeds, that MFG claims CDS intentionally replaced the original guard MFG supplied, that CDS employees, supervisors, and managing agents knew of the hazards associated with tampering with or removing the guard, and that the allegedly noncompliant configuration was connected to CDS's desire to expand the truck's use and "maximize its profits." Plaintiffs further allege that CDS acted with malice, oppression, and fraud and seek punitive damages on that basis. (Proposed TAC ¶ 31(D)-(K).) Paragraphs 41, 54, and 62 incorporate paragraph 31 into the negligent hiring, retention, supervision, training, and entrustment, strict liability, and negligent products liability causes of action, respectively, and the prayer adds punitive and exemplary damages against CDS. (Motion at pp. 8-10.)

In Sanchez, Case No. 21STCV42588, Plaintiff proposes the same substantive punitive damages allegations in paragraph 29(A) through (K). Plaintiffs state those allegations are "identical" to those proposed in Gallegos. (Motion at p. 10.) Paragraphs 38, 49, and 55 incorporate paragraph 29 into the negligent hiring, retention, supervision, training, and entrustment, strict liability, and negligent products liability causes of action, respectively, and the prayer adds punitive and exemplary damages against CDS. (Motion at pp. 10-11.)

Plaintiffs argue there is good cause to amend both complaints to add punitive damages against CDS because, in June 2026, CDS's retained engineering expert, Jason Arst, allegedly revealed that the underride guard was "so mild, so flimsy, that it could not even handle a 5 mile per hour collision." Plaintiffs contend the guard was a "dangerously weak fig leaf" intended to project an appearance of compliance while allowing CDS to expand the truck's use and increase its profitability, which they characterize as a "shocking and despicable act of conscious disregard for public safety." (Motion at p. 2.) Plaintiffs further describe Arst's June 5, 2026 testimony concerning the guard as a "shocking development" and state that "[s]uch a development cries out for punitive damages which is what spawned Plaintiffs' motion for leave to amend." (Motion at p. 4.) They also contend there is no prejudice because the amendment "does not dramatically alter the facts, evidence, or claims being made in this case," is based on evidence "Defendants themselves have offered," and "will not change CDS's defense." (Motion at p. 7.)

First, Plaintiffs' supporting declaration does not address each matter required by California Rules of Court, rule 3.1324, subdivision (b). The Court can discern from Plaintiffs' memorandum the effect of the proposed amendments and their asserted reason the amendments are necessary and proper. (Cal. Rules of Court, rule 3.1324, subd. (b)(1), (2).) The remaining requirements concern when the facts giving rise to the amended allegations were discovered and the reasons the request for amendment was not made earlier. (Id., subd. (b)(3), (4).)

As to when the supporting facts were discovered, CDS contends that the basis for the proposed punitive damages allegations was known well before June 2026. (Opposition at pp. 2, 8.) The record supports that contention. The proposed allegations rest in part on the alleged inadequacy and noncompliance of the underride guard. Plaintiffs themselves state that "[p]rior to June of 2026" they were already asserting that the guard was "in the up position and inadequate." (Motion at p. 3.) Their expert Perry Ponder testified on January 30, 2026 that the guard was "not substantially constructed" and "not strong enough." (Ponder Depo. at 59:21-60:16.) Thus, those aspects of the proposed punitive damages allegations were known before the June 5, 2026 deposition of Jason Arst. The proposed allegations also rely on MFG's position that CDS intentionally replaced the original bar and on invoices produced by CDS in discovery. (Proposed TAC ¶ 31(G).) Plaintiffs do not state when those invoices were produced or when they learned the facts supporting the alleged replacement. The motion therefore does not identify when all of the facts giving rise to the proposed allegations were discovered. (Cal. Rules of Court, rule 3.1324(b)(3).)

Plaintiffs also characterize Arst's testimony as something CDS "revealed" and allege that CDS "admits" the guard would fail beyond a low-speed collision. (Motion at p. 2; Proposed TAC ¶ 31(E).) Arst, however, is CDS's retained expert witness. A party's retention of an expert does not automatically establish the necessary agency relationship for purposes of an authorized admission. (O'Neill v. Novartis Consumer Health, Inc. (2007) 147 Cal.App.4th 1388, 1404.) Nothing in Plaintiffs' showing establishes that Arst was authorized to make admissions on CDS's behalf. (Opposition at pp. 7-8.)

As to why amendment was not sought earlier, Plaintiffs identify Arst's June 5, 2026 testimony as a "shocking development" that "spawned" the motion for leave to amend. (Motion at p. 4.) Even assuming the June 2026 testimony supplied the operative factual basis for the proposed punitive damages allegations, Plaintiffs do not explain why leave was not sought promptly thereafter. The motion was filed more than two months later, on August 21, 2026, eighteen days before trial. (Cal. Rules of Court, rule 3.1324(b)(4).)

Further, the Court finds that granting leave now would prejudice the defense. The Court established the September 8, 2026 trial date and corresponding pretrial schedule on July 1, 2026. On August 17, 2026, the Court conducted a Trial Readiness Conference addressing witness and expert availability, pretrial motions, and the anticipated trial schedule, and reserved the week of August 24 for pretrial proceedings. (7/1/26 Minute Order; 8/17/26 Minute Order.) CDS states that it "has stipulated to vicarious liability to streamline the issues. (Opposition at p. 6.) The record reflects no earlier indication that Plaintiffs intended to seek punitive damages. Plaintiffs filed this motion on August 21, 2026, after the Trial Readiness Conference and eighteen days before trial.

Granting leave when this motion is heard on August 28 would leave CDS eleven days before trial to respond to amended pleadings seeking punitive damages based on malice, oppression, and fraud. A punitive claim against CDS would require proof of authorization, ratification, or conduct by an officer, director, or managing agent (Civ. Code, § 3294, subd. (b)), placing at issue questions of corporate knowledge and ratification that CDS contends, having prepared to defend a negligence action, has had no occasion to develop. CDS states that it would move for summary adjudication if leave were granted. (Opposition at p. 9.) The Court finds that responding to the amended pleadings, preparing evidence and witnesses on these new issues, and hearing any resulting pretrial motions cannot be accomplished in the eleven days before trial. Affording CDS a fair opportunity to do so would require a continuance of a trial the parties have prepared for and the Court has firmly set. (See Magpali, supra, 48 Cal.App.4th at p. 488; P & D Consultants, supra, 190 Cal.App.4th at p. 1345.)

Separately, the proposed amendment in Gallegos appears futile insofar as Kimberly Gallegos and Alex Gallegos seek punitive damages on their wrongful death claims. Although the caption identifies them both individually and as successors-in-interest to Sebastien Gallegos, the proposed Third Amended Complaint alleges that they "bring this action, individually" under Code of Civil Procedure section 377.60, subdivision (a), and seeks damages for their own loss of Sebastien. (Proposed TAC ¶¶ 1, 40, 53, 68.) Punitive damages are not recoverable by heirs on their own wrongful death cause of action. (Code Civ. Proc., § 377.61; Rufo v. Simpson (2001) 86 Cal.App.4th 573, 616, fn. 14; Ford Motor Co. v. Superior Court (1981) 120 Cal.App.3d 748, 751-752.

In sum, on this record, the liberal policy favoring amendment does not outweigh the delay in seeking leave and the resulting prejudice to CDS. Plaintiffs have not sufficiently explained when the facts giving rise to the proposed allegations were discovered, particularly given their own showing that those facts appear to have surfaced in earlier discovery, or why leave was not sought before trial was imminent. Adding a punitive damages claim now would require additional discovery or additional motion practice CDS could not reasonably complete before trial without a continuance. Amendment in any event appears futile insofar as the Gallegos plaintiffs seek punitive damages on their wrongful death claims, which cannot support an award of punitive damages. The motion is therefore denied.

CONCLUSION

Plaintiffs' Motion for Leave to Amend is DENIED.

TENTATIVE

RULING RE: ALLOCATION OF PEREMPTORY CHALLENGES

I. Introduction and Ruling

The Court, having reviewed

the briefs of Plaintiffs, Defendant MFG Associates, Inc. (MFG), Defendants

Consolidated Disposal Service, LLC and Logan Jose Lizares (CDS/Lizares), and

Defendant/Cross-Defendant Estate of Eugene Oh (the Estate), and the Estate's

Supplemental Trial Position Statement, and having met and conferred as

directed, tentatively finds four sides for purposes of allocating

peremptory challenges under Code of Civil Procedure section 231(c):

1.

Plaintiffs (Kimberly and Alex Gallegos

and Angel Sanchez);

2.

CDS/Lizares (Consolidated Disposal

Service, LLC and Logan Jose Lizares);

3.

The Estate of Eugene Oh; and

4.

MFG Associates, Inc.

Each side is allotted

eight (8) peremptory challenges, to be exercised separately. The Court

declines to grant any side additional challenges in the interests of justice,

and declines the competing proposals to treat the matter as two sides or to award nine challenges to any side. The bases for this ruling follow.

II. The Parties' Positions

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MFG contends there are four sides, each entitled to eight challenges (32 total), because the three defendant groups hold divergent, mutually adverse defense postures.

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CDS/Lizares contend there are four sides exercised separately, or alternatively three sides with the Estate placed on Plaintiffs' side; and request no fewer than six challenges if grouped.

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The Estate contends there are two sides (Plaintiffs; and all defendants together), but proposes nine challenges for Plaintiffs and three for each defendant.

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Plaintiffs contend there are two sides (Plaintiffs v. Defendants), and propose nine challenges per side, with the defense nine divided 3/3/3 and unused defense challenges shared.

The parties met and conferred

and reached no agreement on the number of sides, the composition of each side, or the numerical allocation.

III. Legal Standard

Code of Civil Procedure section

231(c) provides: In civil cases, each party shall be entitled to six peremptory challenges. If there are more than two parties, the court shall, for the purpose of allotting peremptory challenges, divide the parties into two or more sides according to their respective interests in the issues. Each side shall be entitled to eight peremptory challenges. If there are several parties on a side, the court shall divide the challenges among them as nearly equally as possible. If there are more than two sides, the court shall grant such additional peremptory challenges to a side as the interests of justice may require, provided that the peremptory challenges of one side shall not exceed the aggregate number of peremptory challenges of all other sides. If any party on a side does not use his or her full share of peremptory challenges, the unused challenges may be used by the other party or parties on the same side.

No published California

decision construes section 231(c)'s sides clause for juror challenges. The

Court is guided by the analogous substantially adverse interests doctrine

developed under Code of Civil Procedure section 170.6. Ordinarily a case has

two sides, but there may be more if codefendants have substantially adverse interests. A party joined with others may be considered to be on a different side... when the joined parties have interests that are 'substantially adverse — the paradigm being two drivers whose collision injures the plaintiff, jointly named as defendants. Whether joined parties share a side is a question of fact, and the proponent of separate-side status must provide evidence of a conflict; substantially adverse interests are not presumed, and mere likelihood of, or potential for, a conflict will not suffice. Conversely, the fact that codefendants may be jointly liable for a judgment against them is insufficient, standing alone, to show substantially adverse interests.

Because a single jury will be selected to try both the bifurcated liability phase and the ensuing damages/apportionment phase, the allocation is a single determination made once, at jury selection, by reference to all issues this jury will decide. Once the jury is passed for cause and sworn, the time for voir dire and peremptory challenges is over, and a party may not reserve or exercise challenges at the close of one phase before the next. The Court therefore evaluates the parties' respective interests in the issues across the entire trial, not merely the liability phase.

IV. Analysis

A. The three defendant groups are

substantially adverse to one another.

The

record establishes actual, evidenced conflict among the defendants — not the

mere potential for conflict that would be insufficient under. CDS/Lizares and

MFG have filed a live cross-complaint and actively contest which of them is

responsible for the selection, installation, condition, and operation of the

rear underride guard. The Estate disputes CDS's and MFG's contentions regarding

Mr. Oh's speed and driving, while CDS and MFG contend Mr. Oh's

conduct caused the collision. The jury will apportion comparative fault among

the Estate, CDS, and MFG, and each will argue for a different allocation. A

defense strategy of avoiding liability by shifting responsibility onto a

coparty is a classic example of the substantially adverse interest that places

parties on different sides. The Court finds each of the three defendant groups

substantially adverse to the others.

B. The Estate is its own side; it

is neither grouped with Plaintiffs nor with the other defendants.

The

Estate occupies a genuinely distinct position. It has asserted no cross-claims.

It aligns with Plaintiffs on the liability of CDS and MFG, but it aligns with

CDS and MFG on the Gallegos Plaintiffs' damages. Critically, the Estate remains a defendant whose degree of liability and apportionment of damages the jury will determine in the Gallegos matter. Because each defendant is severally liable for non-economic damages only in proportion to its own share of fault (Civ. Code, § 1431.2), the Estate has an independent interest in minimizing its apportioned percentage — an interest adverse to Plaintiffs and to its co-defendants alike on an issue this jury will decide.

For

these reasons, the Court rejects the proposal to place the Estate on Plaintiffs' side. Grouping the Estate with Plaintiffs would allow parties who remain adverse on apportionment to pool their strikes, and would understate the Estate's distinct interests across the phases this single jury will decide. The Estate is properly treated as its own, fourth side.

C. The Estate's good-faith

settlement does not alter this conclusion.

The

Estate's good-faith settlement determination was granted, unopposed, only in the Sanchez matter, as to the plaintiff who accepted policy limits; the Gallegos Plaintiffs declined and retain live claims against the Estate. A good-faith settlement bars other tortfeasors' claims against the settlor for

equitable contribution or indemnity (Code Civ. Proc., § 877.6(c);), but it does not dismiss the Estate from the Gallegos action, and the settling tortfeasor's comparative fault is still determined by the jury for apportionment purposes. The Estate itself acknowledges it remains a present defendant subject to the jury's liability and apportionment findings. The settlement therefore does not remove the Estate as a party or merge its interests with any other side.

D. The two-side proposals are rejected.

Plaintiffs

and the Estate urge two sides, relying principally on *People v. Ainsworth*, 45 Cal. 3d 984, 755 P.2d 1017 (1988) and, in Plaintiffs' case, California Rules of Court, rule 3.516. Neither authority governs. *Ainsworth* construed former Penal Code section 1070.5, the criminal statute that required jointly tried defendants to exercise joint peremptory challenges, and held only that compelling such joinder does not violate due process or equal protection. Its observation that codefendants share a common interest at jury selection in avoiding a pro-prosecution jury is not a holding, and it does not address civil allocation under section 231(c). The civil statute, unlike former section 1070.5, affirmatively directs the Court to divide parties into two or more

sides according to their respective interests in the issues, expressly contemplating that substantially adverse codefendants may constitute separate sides. Rule 3.516, in turn, applies by its terms only to peremptory challenges of the assigned judge under section 170.6 in coordinated proceedings; it does not govern juror challenges under section 231(c). That the defendants share a general interest in non-plaintiff-oriented jurors does not erase the substantial adversity the record establishes on the issues to be tried.

E. The nine-challenge and 3/3/3

proposals are rejected.

The

Estate and Plaintiffs each propose nine challenges for the plaintiff side and a 3/3/3 split among the defendants. These proposals do not conform to the statute. Section 231(c) fixes each side's allotment at eight; a division of one side's eight challenges among three parties would be made as nearly equally as possible (i.e., 3/3/2), and provides no basis to enlarge any side to nine. The Court addresses the number of challenges through the statutory per-side figure, not by adding a discretionary ninth.

F. The Court declines to award

additional challenges in the interests of justice.

Because

the Court finds more than two sides, it has discretion to grant additional challenges as the interests of justice may require, subject to the cap that the peremptory challenges of one side shall not exceed the aggregate number of peremptory challenges of all other sides. Plaintiffs contend that an allocation giving the defense collectively more challenges than Plaintiffs is imbalanced and unwieldy. The Court has considered that concern and declines to adjust the allocation. An equal allotment of eight challenges to every side treats each party's distinct interests evenhandedly; the statutory cap is satisfied, because no single side's eight challenges exceed the aggregate (24) held by the other three sides; and Plaintiffs, who proceed on aligned theories through common counsel, are not disadvantaged by receiving the same eight challenges the statute affords every side. The Court finds the equal per-side allocation just and declines to grant any side additional challenges.

V. Order

1.

For purposes of allocating peremptory challenges under Code of Civil Procedure section 231(c), the Court finds four sides:

(1) Plaintiffs; (2) CDS/Lizares; (3) the Estate of Eugene Oh; and (4) MFG.

2.

Each side shall have eight (8) peremptory

challenges, exercised separately.

3.

On the Plaintiffs' side, the Gallegos Plaintiffs

and Angel Sanchez shall divide their eight challenges as nearly equally as

possible; on the CDS/Lizares side, Consolidated Disposal Service, LLC and Logan

Jose Lizares shall divide their eight challenges as nearly equally as possible.

If any party on a side does not use its full share, the unused challenges may

be used by the other party or parties on the same side.

4.

Peremptory challenges shall be taken or passed

by the four sides alternately pursuant to Code of Civil Procedure section

231(d), in the following order: (1) Plaintiffs; (2) CDS/Lizares; (3) Estate of

Eugene Oh; and (4) MFG. Each side, when called upon in that rotation, may

exercise one peremptory challenge or pass. After each exercised challenge, the

panel shall be restored to full before the next side is called upon to exercise

or pass a challenge. The rotation shall then repeat in the same order until the

jury is selected. A side's remaining peremptory challenges shall not be

diminished by a pass. When each of the four sides passes consecutively, the

jury shall be sworn unless the Court, for good cause, otherwise orders.

5.

No side is granted additional peremptory

challenges. This allocation is a single determination for the entire trial,

including both the liability and damages phases to be tried to the same jury,

and challenges may not be reserved for or reopened at the commencement of the

damages phase.